

PACIFY ELECTRONICS PRIVATE LIMITED

EU Regional Addendum

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Effective from: 15 January 2026

Applies to: Customers resident in the European Union member states listed at POL-SHP-001 S1.2

Owner: Legal and Compliance

S1. Status of this Addendum

S1.1 This Addendum supplements the Returns Policy (POL-RET-002) and the Refunds Policy (POL-REF-001) in respect of customers resident in the European Union.

S1.2 **Where this Addendum conflicts with POL-RET-002 or POL-REF-001, this Addendum prevails.** The provisions of those Policies continue to apply to the extent that they are not displaced.

S1.3 This Addendum reflects rights conferred by European Union consumer law. Those rights cannot be excluded, limited, or made subject to conditions by Pacify.

S2. Right of withdrawal

S2.1 A customer resident in the European Union may withdraw from a contract of sale within **14 calendar days** of taking physical possession of the goods.

S2.2 **No reason need be given.** Pacify may not ask for a reason as a condition of accepting the withdrawal, and may not decline a withdrawal on the basis of the reason given.

S2.3 **The right of withdrawal applies whether or not the item has been opened.** The distinction drawn at POL-RET-002 S2.1 and S3 between opened and unopened items has no application to EU customers, and neither the 30-day nor the 14-day window in that Policy applies. The single applicable period is the 14 days at S2.1.

S2.4 A customer may inspect and test the goods to the extent necessary to establish their nature, characteristics, and functioning, in the manner that would be permitted in a physical shop. Doing so does not affect the right of withdrawal.

S2.5 Where a customer has handled the goods beyond what S2.4 permits, Pacify may reduce the reimbursement to reflect any diminished value. Any such reduction must be justified and communicated with reasons.

S3. Exercising the right

S3.1 Withdrawal is exercised by an unambiguous statement to that effect, sent to support@pacify.com or through the customer's Pacify account. No prescribed form is required.

S3.2 The 14-day period at S2.1 is satisfied if the statement is sent before the period expires. The goods need not have been despatched within it.

S3.3 The customer must return the goods within 14 calendar days of giving notice of withdrawal.

S4. Fees and charges

S4.1 **No restocking fee may be applied** to a return effected under this Addendum. POL-RET-002 S10 does not apply.

S4.2 The customer bears the direct cost of returning the goods, unless the goods are defective, damaged on arrival, or not as described, in which case Pacify bears it.

S4.3 The fixed return shipping contribution at POL-RET-002 S9.1 does not apply. The customer arranges return carriage and bears the actual cost.

S4.4 Pacify reimburses the standard outbound delivery charge paid by the customer. Where the customer elected an enhanced delivery method, only the standard charge is reimbursed.

S5. Reimbursement

S5.1 Pacify reimburses all sums received from the customer, subject to S4, **within 14 calendar days** of the earlier of:

- (a) the date Pacify receives the returned goods; or
- (b) the date the customer supplies evidence of having despatched them.

S5.2 The period at S5.1 displaces the processing periods at POL-REF-001 S3 where the latter would be longer.

S5.3 Reimbursement is made using the same means of payment used for the original transaction, unless the customer expressly agrees otherwise.

S6. Exceptions to the right of withdrawal

S6.1 The right of withdrawal does not apply to:

- (a) goods made to the customer's specifications or clearly personalised;
- (b) sealed software, audio, or video recordings where the seal has been broken;
- (c) sealed goods which are not suitable for return for reasons of health protection or hygiene, where the seal has been broken after delivery.

S6.2 The exclusions at POL-RET-002 S5.1 apply only insofar as they correspond to S6.1. In particular, the exclusion of custom-configured units at POL-RET-002 S5.1(d) corresponds to S6.1(a) and is effective; the exclusion of consumables at POL-RET-002 S5.1(e) has no corresponding basis and is not effective against EU customers.

S7. Statutory guarantee of conformity

S7.1 In addition to the right of withdrawal, EU customers benefit from a statutory guarantee that goods conform to the contract for a period of **two years** from delivery.

S7.2 The statutory guarantee operates alongside the Warranty Policy (POL-WAR-001) and is not displaced by it. Where the Warranty Policy provides a shorter period, the statutory period nevertheless applies.

S7.3 For the first twelve months, a defect is presumed to have existed at delivery unless Pacify proves otherwise.

S8. Dispute resolution

S8.1 EU customers may refer an unresolved dispute to the alternative dispute resolution body in their member state, or to the European Online Dispute Resolution platform.

S8.2 Referral under S8.1 does not require prior exhaustion of the escalation procedure at POL-CS-001 S3.

S9. Related documents

- POL-RET-002 — Returns Policy
- POL-REF-001 — Refunds Policy
- POL-WAR-001 — Warranty Policy
- POL-SHP-001 — Shipping and Delivery Policy

Pacify Electronics Private Limited. Issued by Legal and Compliance.